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Case Number: 24NNCV02170 Hearing Date: July 1, 2026 Dept: T

Linda

Reyes vs. One Stop Dental Studio, Inc., a California Corporation, et al.

Motion

to Compel Plaintiff Linda Reyes' Further Responses to Form Interrogatories and Requests
for Production

Moving Party: Defendant

One Stop Dental Studio, Inc.

Responding Party: Plaintiff

Linda Reyes

Tentative Ruling: Grant in part

BACKGROUND

This is an action
arising from alleged unlawful and discriminatory conduct experienced by
Plaintiff Linda Reyes ("Plaintiff") during her employment with Defendant One
Stop Dental Studio, Inc. ("Defendant").

On December 12,
2025, Defendant served first sets of requests for production and form
interrogatories on Plaintiff.

On

January 13, 2026, Plaintiff served its initial responses to this

discovery.

On

March 9, 2026, following meet and confer efforts, Plaintiff served supplemental responses and objections to this discovery.

On April 27, 2026, Plaintiff

filed a motion to compel Defendant's further responses to Form Interrogatory numbers 17.1 and 207.2 and Request for Production numbers 38, 52, 53, and 54.

On

May 22, 2026, the Court on its own motion continued the hearing and directed the parties to meet and confer to narrow the scope of the issues addressed in the instant motion.

Plaintiff opposes,
and Defendant replies.

MOVING PARTY POSITION

Defendant seeks to

compel a further response to Form Interrogatory number 207.2 because Plaintiff's response to this interrogatory is incomplete and evasive as it fails to provide a response to each subpart of this interrogatory with respect to each complaint that was identified.

Similarly, Defendant seeks to compel a further response to Form Interrogatory number 17.1 due to the evasive and incomplete nature of the responses in connection with Plaintiff's responses to the underlying admission requests.

Defendant seeks to

compel further responses to Request for Production numbers 38, 52, 53, and 54 because these requests seek documents that could contain evidence regarding Plaintiff's damages, her credibility, her mitigation efforts, and the circumstances of her employment, as Plaintiff has placed at issue her emotional condition. Plaintiff also fails to support her objections that the requests are overbroad and violate her privacy rights.

Defendant also
seeks sanctions in the amount of \$4,120.00.

OPPOSITION

Plaintiff initially contends that Defendant's
combined motion is procedurally improper and must be denied on that ground
alone.

Plaintiff contends that her responses to the
form interrogatories are code compliant as the responses sufficiently address
each subpart with all of the information available to Plaintiff.

Plaintiff also contends that the request for
sanctions is not warranted.

REPLY

Defendant initially responds that Plaintiff
cites no controlling authority establishing the impropriety of a combined
discovery motion or any prejudice to her from this consolidation.

Defendant responds that Plaintiff's responses
to the form interrogatories are incomplete and evasive and that the objections
to the production requests are boilerplate and improper.

ANALYSIS

I.

Legal Standard

A. Form Interrogatories

Code of

Civil Procedure section 2030.300(a) provides that "[o]n receipt of a response
to interrogatories, the propounding party may move for an order compelling a
further response if the propounding party deems that any of the following
apply: 2222

(1) An

answer to a particular interrogatory is evasive or incomplete.)))

(2) An

exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate.)))

(3) An

objection to an interrogatory is without merit or too general.”)))

) “Unless

notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party waives any right to compel a further response to the interrogatories.” (Code Civ.

Proc. § 2030.300, subd. (c).)

))) “The court

shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc. § 2030.300, subd. (d).))

B. Requests for Production

Code of

Civil Procedure section 2031.310(a) provides that “on receipt of a response to a request for production of documents, the demanding party may move for an order compelling further responses if:)))

(1) A statement of compliance with the demand is incomplete.)))

(2) A representation of inability to comply is inadequate, incomplete, or evasive.)))

(3) An objection in the response is without merit or too general.”))))

“The

motion shall set forth specific facts showing good cause justifying the discovery sought by the demand.” (Code Civ. Proc. § 2031.310, subd. (b)(1).)

“The motion shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc. § 2031.310, subd. (b)(2).)

“Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to the demand.” (Code Civ. Proc. § 2031.310, subd. (c).)

“[T]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc. § 2031.310, subd. (h).)

II. Discussion

“Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” (Code Civ. Proc. § 2017.010.)

On June 24, 2026, the parties filed a joint statement in which they informed the Court that they have been unable to resolve their dispute regarding the form interrogatory responses. In addition, the parties stated that Plaintiff agreed to attempt to provide supplemental responses to the identified production requests prior to the hearing and that Defendant would file a statement with the Court on June 30, 2026, if Plaintiff’s responses had yet to be received. Defendant’s June 30, 2026 filing states that no supplemental responses were received. Accordingly, the Court shall address these production requests in turn below.

A. Form

Interrogatories

In its combined motion, Defendant seeks to compel further responses to Form Interrogatory numbers 207.2 and 17.1

Code of Civil Procedure section

2030.220 provides as follows:

(a) Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits.

(b) If an interrogatory cannot be answered completely, it shall be answered to the extent possible.

(c) If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party.

Form

Interrogatory number 207.2 initially asks, "Did the EMPLOYEE complain to the EMPLOYER about any of the unlawful conduct alleged in the PLEADINGS?" If the response to this initial inquiry is affirmative, the interrogatory then requests specific information for each complaint as set forth in subparts (a) through (j).

As

Plaintiff affirmatively responded to the initial inquiry, Plaintiff was required to respond to each subpart of the interrogatory for each complaint. Furthermore, in response to subpart (a), Plaintiff stated seven different dates on which a complaint was made regarding Defendant's unlawful conduct.

Given this response, Plaintiff appears to identify seven independent complaints that each required a complete response to the information sought by subparts (b) through (j). (Deyo v. Kilbourne (1978) 84 Cal.App.3d 771, 783 ["Where the question is specific and explicit, an answer which supplies only a portion of the information sought is wholly insufficient."].) Even if the

Court were to assume that some of the underlying information set forth in Plaintiff's response to the subparts of Form Interrogatory number 207.2 is responsive to many or all of the seven identified complaints, Plaintiff's responses to subparts (b) and (f) remain evasive and incomplete. The nature of each complaint must independently be described under subpart (b), which Plaintiff failed to provide. Moreover, the mere acknowledgment of a list of unspecified individuals who were interviewed fails to provide the information sought by subpart (f) regarding the identity and location of potential witnesses who were involved in the investigations of any of these complaints. (Williams v. Superior Court (2017) 3 Cal.5th 531, 541 ["A party may use interrogatories to request the identity and location of those with knowledge of discoverable matters."].) Nor does Plaintiff justify the failure to provide a complete response to this form interrogatory for each complaint. (Id. at p. 541 ["While the party propounding interrogatories may have the burden of filing a motion to compel if it finds the answers it receives unsatisfactory, the burden of justifying any objection and failure to respond remains at all times with the party resisting an interrogatory."].) Thus, as Plaintiff failed to provide the requested information for each of her complaints, the Court finds that Plaintiff's response was evasive and incomplete.

Form Interrogatory number 17.1

similarly poses an initial inquiry that asks Plaintiff if her responses to each of Defendant's admission requests was an unqualified admission. If any of the responses were not an unqualified admission, the interrogatory then requests specific information for each of those responses as set forth in subparts (a) through (d).

As

Plaintiff denied each of the underlying admission requests, Plaintiff was required to respond to each subpart of the interrogatory for each denial. In addition, each of the underlying admission requests appears to rely on specific aspects of the unlawful and discriminatory conduct alleged in Plaintiff's complaint. However, in response to this form interrogatory and its subparts, Plaintiff addresses all of the denials at once without providing the factual detail and information sought by each subpart as to each denial. (Deyo, supra, 84 Cal.App.3d at p. 783.) Thus, as Plaintiff failed to provide the requested information in subparts (a) through (d) for each of her denials to the

admission requests, the Court finds that Plaintiff's response was evasive and incomplete.

Therefore,
the motion is granted as to Form Interrogatory numbers 207.2 and 17.1.

B. Requests for Production

"In the more specific context of a request to produce documents, a party who seeks to compel production must show "good cause" for the request [citation]—but where, as here, there is no privilege issue or claim of attorney work product, that burden is met simply by a fact-specific showing of relevance." (Glenfed Development Corp. v. Superior Court (1997) 53 Cal.App.4th 1113, 1117.)

Request for Production number 38 demands the following: "ALL YOUR social media postings from January 1, 2020 through the date of YOUR response to this document request, INCLUDING but not limited to postings on Facebook, LinkedIn, Reddit, Pinterest, YouTube, Instagram, WhatsApp, TikTok, WeChat, Snapchat, X (formerly known as Twitter), Telegram, Messenger (formerly known as Facebook Messenger), blogs, wikis." In their joint statement, the parties stated that the scope of Request for Production number 38 will be narrowed to social media postings relating to Defendant's current or former employees.

Request for Production number 52 demands the following: "ALL journals, diaries, calendars, appointment books, emails, text messages, social media posts, agendas, notebooks, and notes written OR maintained by YOU from January 2020 through AND INCLUDING the present RELATING to ANY of the allegations in YOUR COMPLAINT."

Request for Production number 53 demands the following: "ALL journals, diaries, calendars, appointment books, emails, text messages, social media posts, agendas, notebooks, and notes written OR maintained by YOU from January 2020 through AND INCLUDING the present RELATED to YOUR employment with ONE STOP."

Request for Production number 54 demands the following: "ALL journals, diaries, calendars, appointment books, emails, text messages, social media posts, agendas, notebooks, and notes

written OR maintained by YOU from January 2020 through AND INCLUDING the present RELATED to the terms OR conditions of YOUR employment with ONE STOP."

Given the nature of Plaintiff's factual allegations regarding her employment and the claims made in her complaint as to the emotional distress she experienced due to the alleged unlawful and discriminatory conduct, the Court finds that Defendant has shown good cause for these production requests.

Therefore, the motion is granted as to Request for Production numbers 38, 52, 53, and 54, subject to the parties' stipulated limitation to the scope of Request for Production number 38.

C. Sanctions

Defendant seeks sanctions in the amount of \$4,120.00 against Plaintiff. The Court finds that Defendant's meet and confer efforts identified objective shortcomings in Plaintiff's responses and that Plaintiff did not act in good faith by failing to provide supplemental responses. The Court further finds that Plaintiff did not act with substantial justification in opposing the motion. As such, the Court finds the sanctions award to be reasonable.

However, as Defendant has combined multiple discovery motions into one filing, this order is stayed pending the Court's receipt of the required fee payments under Government Code section 70617 for unpaid fees attributable to two of these motions. (See Gov. Code § 70617, subd. (a) ["Except as provided in subdivisions (d) and (e), the uniform fee for filing a motion, application, or any other paper requiring a hearing subsequent to the first paper, is sixty dollars (\$60)."]; Gov. Code § 70617, subd. (f) ["Regardless of whether each motion or matter is heard at a single hearing or at separate hearings, the filing fees required by subdivisions (a), (c), (d), and (e) apply separately to each motion or other paper filed."].) Furthermore, Defendant is directed in the future to file separate motions for each method of discovery.

RULING

Defendant's Motion to Compel Plaintiff's Further

Responses to Form Interrogatories and Requests for Production is GRANTED IN PART as to Form Interrogatory numbers 207.2 and 17.1 and Request for Production numbers 38, 52, 53, and 54, subject to the stipulated limitation stated above. Plaintiff to serve her supplemental responses within 20 days of this order.

Plaintiff to pay monetary sanctions in the amount of \$4,120.00 within 30 days of this order.

The Court's order is stayed pending receipt of Defendant's unpaid filing fees in the total amount of \$120.00.